
International Data Transfer Addendum to the EU Commission Standard Contractual Clauses

VERSION B1.0, in force 21 March 2022

This Addendum has been issued by the Information Commissioner for Parties making Restricted Transfers. The Information Commissioner considers that it provides Appropriate Safeguards for Restricted Transfers when it is entered into as a legally binding contract.

Part 1: Tables

Table 1: Parties

Start date	September 15, 2022	
The Parties	Exporter (who sends the Restricted Transfer)	Importer (who receives the Restricted Transfer)
Parties' details	Full legal name: Microsoft Ireland Operations Limited Trading name (if different): Main address (if a company registered address): One Microsoft Place South County Business Park Leopardstown, Dublin 18 D18 P521, Ireland Official registration number (if any) (company number	Full legal name: Microsoft Corporation Trading name (if different): Main address (if a company registered address): Microsoft Corporation Attn: Chief Privacy Officer One Microsoft Way Redmond, WA 98052 USA Official registration number (if any) (company number or similar identifier):

	or similar identifier): IE256796	
Key Contact	Full Name (optional): Job Title: Microsoft EU Data Protection Officer Contact details including email: One Microsoft Place South County Business Park Leopardstown, Dublin 18 D18 P521, Ireland If you have a privacy concern, complaint, or question for the Microsoft Chief Privacy Officer or the Data Protection Officer for your region, please contact us at https://www.microsoft.com/en-ie/concern/privacy	Full Name (optional): Job Title: Chief Privacy Officer Contact details including email: Microsoft Corporation One Microsoft Way Redmond, WA 98052 USA If you have a privacy concern, complaint, or question for the Microsoft Chief Privacy Officer or the Data Protection Officer for your region, please contact us at https://www.microsoft.com/en-ie/concern/privacy
Signature (if required for the purposes of Section 2)		

Table 2: Selected SCCs, Modules and Selected Clauses

Addendum EU SCCs	☐ The version of the Approved EU SCCs which this Addendum is appended to, detailed below, including the Appendix Information: Date: Reference (if any): Other identifier (if any): Or ☒ the Approved EU SCCs, including the Appendix Information and with only the following modules, clauses or optional provisions of the Approved EU SCCs brought into effect for the purposes of this Addendum:
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Module	Module in operation	Clause 7 (Docking Clause)	Clause 11 (Option)	Clause 9a (Prior Authorisation or General Authorisation)	Clause 9a (Time period)	Is personal data received from the Importer combined with personal data collected by the Exporter?
1						
2						
3	Module 3	Yes	Yes	General Written Authorisation	At least 30 days	
4						

Table 3: Appendix Information

“**Appendix Information**” means the information which must be provided for the selected modules as set out in the Appendix of the Approved EU SCCs (other than the Parties), and which for this Addendum is set out in:

Annex 1A: List of Parties: Microsoft Ireland Operations Limited, Microsoft Corporation

Annex 1B: Description of Transfer:

Categories of data subjects whose personal data is transferred

Data subjects: Data subjects include Customers’ representatives and end-users including employees, contractors, collaborators, and customers of the Customer. Data subjects may also include individuals attempting to communicate or transfer personal information to Customers. The data importer acknowledges that, depending on Customer’s use of the Products and Services, Customer may elect to include personal data from any of the following types of data subjects in the personal data:

- Employees, contractors and temporary workers (current, former, prospective) of the Customer;
- Dependents of the above;
- Customer's collaborators/contact persons (natural persons) or employees, contractors or temporary workers of legal entity collaborators/contact persons (current, prospective, former);
- Users (e.g., customers, clients, patients, visitors, etc.) and other data subjects that are users of Customer's services;
- Partners, stakeholders or individuals who actively collaborate, communicate or otherwise interact with employees of the Customer and/or use communication tools such as apps and websites provided by the Customer;

- Stakeholders or individuals who passively interact with the Customer (e.g., because they are the subject of an investigation, research or mentioned in documents or correspondence from or to the Customer);
- Minors; or
- Professionals with professional privilege (e.g., doctors, lawyers, notaries, religious workers, etc.).

Categories of personal data transferred

Categories of data: The personal data that is included in e-mail, documents and other data in an electronic form in the context of the Products and Services. Data importer acknowledges that, depending on Customer's use of the Products and Services, Customer may elect to include personal data from any of the following categories in the personal data:

- Basic personal data (for example place of birth, street name and house number (address), postal code, city of residence, country of residence, mobile phone number, first name, last name, initials, email address, gender, date of birth), including basic personal data about family members and children;
- Authentication data (for example user name, password or PIN code, security question, audit trail);
- Contact information (for example addresses, email, phone numbers, social media identifiers; emergency contact details);
- Unique identification numbers and signatures (for example Social Security number, bank account number, passport and ID card number, driver's license number and vehicle registration data, IP addresses, employee number, student number, patient number, signature, unique identifier in tracking cookies or similar technology);
- Pseudonymous identifiers;
- Financial and insurance information (for example insurance number, bank account name and number, credit card name and number, invoice number, income, type of assurance, payment behavior, creditworthiness);
- Commercial Information (for example history of purchases, special offers, subscription information, payment history);
- Biometric Information (for example DNA, fingerprints and iris scans);
- Location data (for example, Cell ID, geo-location network data, location by start call/end of the call. Location data derived from use of wifi access points);
- Photos, video and audio;
- Internet activity (for example browsing history, search history, reading, television viewing, radio listening activities);
- Device identification (for example IMEI-number, SIM card number, MAC address);
- Profiling (for example based on observed criminal or anti-social behavior or pseudonymous profiles based on visited URLs, click streams, browsing logs, IP-addresses, domains, apps installed, or profiles based on marketing preferences);
- HR and recruitment data (for example declaration of employment status, recruitment information (such as curriculum vitae, employment history, education history details), job and position data, including worked hours, assessments and salary, work permit details, availability, terms of employment, tax details, payment details, insurance details and location and organisations);
- Education data (for example education history, current education, grades and results, highest degree achieved, learning disability);

- Citizenship and residency information (for example citizenship, naturalization status, marital status, nationality, immigration status, passport data, details of residency or work permit);
- Information processed for the performance of a task carried out in the public interest or in the exercise of an official authority;
- Special categories of data (for example racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, data concerning a natural person's sex life or sexual orientation, or data relating to criminal convictions or offences); or
- Any other personal data identified in Article 4 of the GDPR.

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

Data importer has implemented and will maintain the security measures set forth at Annex II.

The frequency of the transfer (e.g. whether the data is transferred on a one-off or continuous basis).

Data may be transferred on a continuous basis.

Nature of the processing/Purpose(s) of the data transfer and further processing

Customer Data, Professional Services Data, and Personal Data will be used and otherwise processed only as described and subject to the limitations provided in the DPA (a) to provide Customer the Products and Services in accordance with Customer's documented instructions, and (b) for business operations incident to providing the Products and Services to Customer.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period

Except for free trials and LinkedIn services, Data importer will retain Customer Data that remains stored in Online Services in a limited function account for 90 days after expiration or termination of Customer's subscription so that Customer may extract the data. After the 90-day retention period ends, Data importer will disable Customer's account and delete the Customer Data and Personal Data stored in Online Services within an additional 90 days, unless Data importer is permitted or required by applicable law, or authorized under this DPA, to retain such data.

For Personal Data in connection with the Software and for Professional Services Data, Data importer will delete all copies after the business purposes for which the data was collected or transferred have been fulfilled or earlier upon Customer's request, unless authorized under this DPA to retain such data.

The Online Service may not support retention or extraction of software provided by Customer. Data importer has no liability for the deletion of Customer Data, Professional Services Data, or Personal Data as described in this section.

For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing

Data importer may hire Subprocessors to provide certain limited or ancillary services on its behalf. Data importer is responsible for its Subprocessors' compliance with Microsoft's

obligations in the DPA. Data importer makes available information about Subprocessors on a Microsoft website. When engaging any Subprocessor, Data importer will ensure via a written contract that the Subprocessor may access and use Customer Data, Professional Services Data, or Personal Data only to deliver the services Data importer has retained them to provide and is prohibited from using Customer Data, Professional Services Data, or Personal Data for any other purpose. Data importer will ensure that Subprocessors are bound by written agreements that require them to provide at least the level of data protection required of Microsoft by the DPA, including the limitations on disclosure of Processed Data. Data importer agrees to oversee the Subprocessors to ensure that these contractual obligations are met.

Annex II: Technical and organisational measures including technical and organisational measures to ensure the security of the data:

Technical and Organisational Measures

With respect to the processing and security of Customer Data, Personal Data or Professional Services Data in connection with the Products and Services, the data importer has implemented and will maintain the following security measures.

Domain	Practices
Organisation of Information Security	Security Ownership. Data importer has appointed one or more security officers responsible for coordinating and monitoring the security rules and procedures. Security Roles and Responsibilities. Data importer personnel with access to Customer Data, Personal Data or Professional Services Data are subject to confidentiality obligations. Risk Management Program. Data importer performed a risk assessment before processing the Customer Data, Personal Data or Professional Services Data or launching the Online Services or Professional Services. Data importer retains its security documents pursuant to its retention requirements after they are no longer in effect.
Asset Management	Asset Inventory. Data importer maintains an inventory of all media on which Customer Data, Personal Data or Professional Services Data is stored. Access to the inventories of such media is restricted to the data importer personnel authorized in writing to have such access. Asset Handling - Data importer classifies Customer Data, Personal Data or Professional Services Data to help identify it and to allow for access to it to be appropriately restricted. - Data importer has procedures for disposing of printed materials that contain Customer Data, Personal Data or Professional Services Data. • Data importer personnel must obtain data importer's authorization prior to storing Customer Data, Personal Data or Professional Services Data on portable devices, remotely accessing such data, or processing such data outside the data importer's facilities.

Human Resources Security	Security Training. Data importer informs its personnel about relevant security procedures and their respective roles. Data importer also informs its personnel of possible consequences of breaching the security rules and procedures.
Physical and Environmental Security	Physical Access to Facilities. Data importer limits access to facilities where information systems that process Customer Data, Personal Data or Professional Services Data are located to identified authorized individuals. Physical Access to Components. Data importer maintains records of the incoming and outgoing media containing Customer Data, Personal Data or Professional Services Data, including the kind of media, the authorized sender/recipients, date and time, the number of media and the types of such data they contain. Protection from Disruptions. Data importer uses a variety of industry standard systems to protect against loss of data due to power supply failure or line interference. Component Disposal. Data importer uses industry standard processes to delete Customer Data, Personal Data or Professional Services Data when it is no longer needed.
Communications and Operations Management	Operational Policy. Data importer maintains security documents describing its security measures and the relevant procedures and responsibilities of its personnel who have access to Customer Data, Personal Data or Professional Services Data. Data Recovery Procedures - On an ongoing basis, but in no case less frequently than once a week (unless no Customer Data, Personal Data or Professional Services Data has been updated during that period), the data importer maintains multiple copies of Customer Data, Personal Data or Professional Services Data from which such data can be recovered. - Data importer stores copies of Customer Data, Personal Data or Professional Services Data and data recovery procedures in a different place from where the primary computer equipment processing the Customer Data, Personal Data or Professional Services Data are located. - Data importer has specific procedures in place governing access to copies of Customer Data, Personal Data or Professional Services Data. - Data importer reviews data recovery procedures at least every twelve months. - Data importer logs data restoration efforts, including the person responsible, the description of the restored data and where applicable, the person responsible and which data (if any) had to be input manually in the data recovery process.

	Malicious Software. Data importer has anti-malware controls to help avoid malicious software gaining unauthorized access to Customer Data, Personal Data or Professional Services Data, including malicious software originating from public networks. Data Beyond Boundaries - Data importer encrypts, or enables Customer to encrypt, Customer Data, Personal Data or Professional Services Data that is transmitted over public networks. - Data importer restricts access to Customer Data, Personal Data or Professional Services Data in media leaving its facilities. Event Logging. Data importer logs, or enables Customer to log, access and use of information systems containing Customer Data, Personal Data or Professional Services Data registering the access ID, time, authorization granted or denied, and relevant activity.
Access Control	Access Policy. Data importer maintains a record of security privileges of individuals having access to Customer Data, Personal Data or Professional Services Data. Access Authorization - Data importer maintains and updates a record of personnel authorized to access the data importer's systems that contain Customer Data, Personal Data or Professional Services Data. - Data importer deactivates authentication credentials that have not been used for a period of time not to exceed six months. - Data importer identifies those personnel who may grant, alter or cancel authorized access to data and resources. - Data importer ensures that where more than one individual has access to systems containing Customer Data, Personal Data or Professional Services Data, the individuals have separate identifiers/log-ins. Least Privilege - Technical support personnel are only permitted to have access to Customer Data, Personal Data or Professional Services Data when needed. - Data importer restricts access to Customer Data, Personal Data or Professional Services Data to only those individuals who require such access to perform their job function. Integrity and Confidentiality - Data importer instructs Microsoft personnel to disable administrative sessions when leaving premises the data importer controls or when computers are otherwise left unattended. - Data importer stores passwords in a way that makes them unintelligible while they are in force.

	Authentication - Data importer uses industry standard practices to identify and authenticate users who attempt to access information systems. - Where authentication mechanisms are based on passwords, the data importer requires that the passwords are renewed regularly or uses other Multi-Factor-Authentication (MFA) methods. - Where authentication mechanisms are based on passwords, the data importer requires the password to be at least eight characters long. - Data importer ensures that de-activated or expired identifiers are not granted to other individuals. - Data importer monitors, or enables Customer to monitor, repeated attempts to gain access to the information system using an invalid password. - Data importer maintains industry standard procedures to deactivate passwords that have been corrupted or inadvertently disclosed. - Data importer uses industry standard password protection practices, including practices designed to maintain the confidentiality and integrity of passwords when they are assigned and distributed, and during storage. Network Design. Data importer has controls to avoid individuals assuming access rights they have not been assigned to gain access to Customer Data, Personal Data or Professional Services Data they are not authorized to access.
Information Security Incident Management	Incident Response Process - Data importer maintains a record of security breaches with a description of the breach, the time period, the consequences of the breach, the name of the reporter, and to whom the breach was reported, and the procedure for recovering data. - For each security breach that is a Security Incident, notification by the data importer (as described in the “Security Incident Notification” section above) will be made without undue delay and, in any event, within 72 hours. - Data importer tracks, or enables Customer to track, disclosures of Customer Data and Professional Services Data, including what data has been disclosed, to whom, and at what time. Service Monitoring. Data importer security personnel verify logs at least every six months to propose remediation efforts if necessary.
Business Continuity Management	- Data importer maintains emergency and contingency plans for the facilities in which the data importer’s information systems that process Customer Data, Personal Data or Professional Services Data are located.

	- Data importer's redundant storage and its procedures for recovering data are designed to attempt to reconstruct Customer Data, Personal Data or Professional Services Data in its original or last-replicated state from before the time it was lost or destroyed.
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Data importer provides the additional safeguards as described in Appendix C - Additional Safeguard Addendum to the DPA for data transferred to it as the data importer.

Data importer will implement and maintain appropriate technical and organisational measures to protect Customer Data, Professional Services Data, and Personal Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored or otherwise processed. Those measures shall be set forth in a Microsoft Security Policy. Data importer will make that policy available to Customer, along with other information reasonably requested by Customer regarding Microsoft security practices and policies.

In addition, those measures shall comply with the requirements set forth in ISO 27001, ISO 27002, and ISO 27018. A description of the security controls for these requirements is available to Customer.

Annex III: List of Sub processors (Modules 2 and 3 only):

Data importer may hire Subprocessors to provide certain limited or ancillary services on its behalf. Data importer is responsible for its Subprocessors' compliance with Microsoft's obligations in the DPA. Data importer makes available information about Subprocessors on a Microsoft website. When engaging any Subprocessor, Data importer will ensure via a written contract that the Subprocessor may access and use Customer Data, Professional Services Data, or Personal Data only to deliver the services Data importer has retained them to provide and is prohibited from using Customer Data, Professional Services Data, or Personal Data for any other purpose. Data importer will ensure that Subprocessors are bound by written agreements that require them to provide at least the level of data protection required of Microsoft by the DPA, including the limitations on disclosure of Processed Data. Data importer agrees to oversee the Subprocessors to ensure that these contractual obligations are met.

Table 4: Ending this Addendum when the Approved Addendum Changes

Ending this Addendum when the Approved Addendum changes	Which Parties may end this Addendum as set out in Section 19: ☒ Importer ☒ Exporter ☐ neither Party
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Part 2: Mandatory Clauses

Mandatory Clauses	Part 2: Mandatory Clauses of the Approved Addendum, being the template Addendum B.1.0 issued by the ICO and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18 of those Mandatory Clauses.
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